

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ('NDA') is effective as of October 1, 2026, between CyberScale Technologies Corp. and NovaLabs AI Ltd.

1. PURPOSE OF DISCLOSURE

The parties wish to explore a potential strategic collaboration involving enterprise AI automated compliance and contract analysis systems ('Authorized Purpose').

2. DEFINITION OF CONFIDENTIAL INFORMATION

'Confidential Information' includes all non-public technical, algorithmic, operational, financial, and business data disclosed by either party, whether in writing, oral, electronic, or visual form.

3. EXCLUSIONS FROM CONFIDENTIALITY

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement; (b) was already known to the recipient prior to disclosure; (c) is independently developed without reference to the Discloser's information.

4. OBLIGATIONS & STANDARD OF CARE

The Recipient agrees to protect Confidential Information using the same degree of care it uses for its own confidential information of like nature, but in no event less than a reasonable standard of care.

5. NON-CIRCUMVENTION

Recipient agrees not to circumvent, avoid, or bypass Discloser directly or indirectly to enter into transactions with Discloser's prospective enterprise clients or partners revealed during the evaluation period.

6. GOVERNING LAW AND INJUNCTIVE RELIEF

This Agreement shall be governed by the laws of California. The parties acknowledge that unauthorized disclosure causes irreparable harm for which damages are inadequate, entitling the Discloser to seek immediate injunctive relief.